		"The element of intent is narrow. '[T]he intent sufficient to support the judgment [of usury] does not require a conscious attempt, with knowledge of the law, to evade it. The conscious and voluntary taking of more than the legal rate of interest constitutes usury and the only intent necessary on the part of the lender is to take the amount of interest which he receives; if that amount is more than the law allows, the offense is complete.' " (*Korchemny v. Piterman* (2021) 68 Cal.App.5th 1032, 1043, quoting Ghirardo, supra, 8 Cal.4th at p. 798.) " 'In determining whether usurious interest has been charged or collected under a particular contract it is not permissible to consider only a portion of the term. The test is: Did the lender under his contract charge or receive a profit on his investment in excess of the maximum rate for the full period of the loan? If he has, there is usury; otherwise not.' " (*Sharp v. Mortgage Sec. Corp. of America* (1932) 215 Cal. 287, 290 [citation omitted].) Additionally, "the contract must in its inception require a payment of usury …." (Id.) The first cause of action for usury alleges Defendant lent Plaintiff $150,000 in May 2015. (FAC ¶ 15.) Plaintiff repaid the loan in full, discharging the obligation in June 2022, and paying $91,000 in interest as rental income (a rate of 8.6 percent per annum). (Ibid.) The FAC alleges Defendant's demand of an additional $165,000 from Plaintiff is a conscious intent to charge an interest rate of 24.4 percent per year. (Id. at ¶¶ 13, 16.) The FAC further alleges that while Defendant did not express to Plaintiff her intent that the loan also entitled her to a permanent joint interest in the Property at the time the loan was made, she subsequently represented that this had been her intent from the inception of the loan. (Id. at ¶ 8.) Furthermore, the FAC alleges that Defendant demanded $256,500 in interest on her seven-year $150,000 loan, or 24.4 percent per annum. (Id. at ¶ 13.) The above allegations are sufficient to survive demurrer and thus the instant Demurrer is OVERRULED. Defendant to file an Answer to the FAC within 20 days' notice of this ruling. Plaintiff to give notice.
58	**Mejia vs. Hernandez** **25-01529994**	**Motion for Leave to File Cross Complaint** Defendant Victor Hugo Hernandez's unopposed motion for leave to file a cross-complaint is GRANTED. (Code of Civ. Proc. § 26.50.) Defendant to file the Cross-Complaint within 10 days of this ruling. Moving Party is to give notice.

59	**CAM XI TRUST vs. VIRGINIA VON SCHAEFER, TRUSTEE OF VIRGINIA VON SCHAEFER FAMILY TRUST** **21-01231930**	**Motion for Attorney Fees** Plaintiff CAM XI Trust's Motion for Attorney's Fee and Costs is DENIED. Preliminarily, Plaintiff's request for judicial notice of the following documents is GRANTED as to their existence, filing, and/or recordation, but not as to the truth of any disputed factual matters asserted therein. (Evid. Code, § 452, subds. (c), (d), (h); § 453.) 1. Deed of Trust dated May 17, 2016, and recorded May 19, 2016, as Document No. 2016000223443 (Exhibit 1) 2. Verified Complaint filed November 16, 2021 [ROA #2] (Exhibit 8) Plaintiff's remaining requests for judicial notice (Nos. 2-7 and 9-60), as well as Defendant's request for judicial notice, are DENIED as unnecessary to resolution of this motion. ***Motion for Attorney's Fees*** Plaintiff moves for an award of $78,861.70 in attorney fees, contending that it is the prevailing party and that the parties' contracts authorize recovery of such fees and costs. "[E]ach party to a lawsuit is responsible for his or her own attorney's fees in the absence of an agreement between the parties for fees or a statute specifically authorizing fees. [Citations.]" (*Pederson v. Kennedy* (1982) 128 Cal.App.3d 976, 979.) Attorney fees are recoverable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Civil Code section 1717, subdivision (a) provides, "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).) Civil Code section 1717 "applies only to 'action[s] on a contract.' " (*Hsu v. Abbara* (1995) 9 Cal.4th 804; *In re Tobacco Cases I* (2011) 193 Cal.App.4th 1591; *Khan v. Shim* (2016) 7 Cal.App.5th 49, 56.) In determining whether an action is "on a contract," the focus is on the basis of the cause of action, not the nature of the remedy. (*Yoon v. CAM IX Trust* (2021) 60 Cal.App.5th 388, 392-393; *Kachlon v. Markowitz* (2008) 168 Cal.App.4th 316, 347.) Thus, declaratory, injunctive, and quiet title claims may constitute actions "on a contract" when based on rights arising under a note or deed of trust. (*Kachlon, supra*, at pp. 347-348.)